

		purported practices. (See <i>FilmOn.com Inc. v. DoubleVerify Inc.</i>, <i>supra</i>, 7 Cal.5th at p. 153-154 [concluding that private commercial speech between parties that is used for commercial purposes only and that “never entered the public sphere” did not qualify for protection]; <i>Murray v. Tran</i> (2020) 55 Cal.App.5th 10, 34 [statements regarding doctor’s competence made to a private group, which were not designed to be made public and were not to be disclosed to affected patients, did not meet the <i>FilmOn.com</i> criteria].) In short, the Cease-and-Desist Letter and Statements appear to be an effort to gather ammunition for another round of a private controversy rather than an attempt to exercise rights to petition or free speech. (See <i>Weinberg v. Feisel</i>, <i>supra</i>, 110 Cal.App.4th at pp. 1132-1133.) Thus, the statements in question were not made in furtherance of the exercise of the right to petition or free speech relating to a public issue or an issue of public interest. Defendants fail to show that the challenged claims arise from protected activity. Thus, the court need not proceed to the second step of the anti-SLAPP analysis and must deny the motion. Plaintiff shall give notice of this ruling.
7	Kameli vs. English 30-2023-01304346	<u>Motion to Compel Discovery</u> Pursuant to the Notice of Withdrawal of Motion to Compel Further Responses to Form Interrogatories filed September 18, 2023, (ROA #68), this matter is taken OFF CALENDAR.
8	Lowther vs. Pavilion Park Senior 1 Housing Partners 30-2022-01267301	<u>Motions to Compel Discovery</u> Defendant Pavilion Park Senior 1 Housing Partners’ Motion to Compel Plaintiff to Respond to Defendant Pavilion Park Senior 1 Housing Partners’s Form Interrogatories – General, Set One is GRANTED. Defendant Pavilion Park Senior 1 Housing Partners’ Motion to Compel Plaintiff to Respond to Defendant’s Special Interrogatories, Set One is GRANTED.

		Defendant Pavilion Park Senior 1 Housing Partners' Motion to Compel Plaintiff to Respond to Defendant's Request for Production of Documents, Set One is GRANTED. Plaintiff James Lowther is ORDERED to serve full, complete, and verified responses to: Form Interrogatories – General, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One. without objections within 30 days of service of the notice of ruling. Plaintiff James Lowther is ORDERED to pay to Defendant Pavilion Park Senior 1 Housing Partners' sanctions in the amount of \$1,830 (5.5 hours x \$300 per hour in reasonable attorney's fees and \$180 in motion filing fees) within 30 days of service of the notice of ruling. Defendant Pavilion Park Senior 1 Housing Partners moves to compel Plaintiff James Lowther to serve responses to Defendant's Form Interrogatories – General, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One. <u>Standard to Compel Responses</u> When a party properly propounds interrogatories and the party receiving the interrogatories fails to respond, "[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories." (Code Civ. Proc., § 2030.290, subd. (b).) In addition, when a party properly propounds requests for production and the party receiving the requests fails to respond, "[t]he party making the demand may move for an order compelling response to the demand." (Code Civ. Proc., § 2031.300, subd. (b).) When the party receiving the discovery requests fails to respond, the propounding party is not required to file a meet and confer declaration prior to filing its motion to compel, and there is no time limit for the propounding party to file its motion. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific</i>
--	--	---

		<i>Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 404.) Further, “[t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product” (Code Civ. Proc., § 2030.290, subd. (a).) Finally, “[t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product” (Code Civ. Proc., § 2031.300, subd. (a).) Here, Defendant has submitted evidence that it properly served Form Interrogatories – General, Set One; Special Interrogatories, Set One; and Request for Production of Documents, Set One. (See Amend. Decl. of Steven E. Bolanos in Supp. of Def.’s Mot. to Compel Pltf.’s Responses to Form Interrogatories – General, Set One, ¶¶ 2-4, Exhs. A-B; Amend. Decl. of Steven E. Bolanos in Supp. of Def.’s Mot. to Compel Pltf.’s Responses to Special Interrogatories, Set One, ¶¶ 2-4, Exhs. A-B; Decl. of Steven E. Bolanos in Supp. of Def.’s Mot. to Compel Pltf.’s Responses to Req. for Prod. of Documents, Set One, ¶¶ 2-4, Exhs. A-B.) Defendant also showed that Plaintiff has not served responses to any of these discovery requests, although the time to do so has passed. (<i>Ibid.</i>, ¶¶ 5-6.) Despite being served with the instant motions at two different mailing addresses, Plaintiff has not filed an opposition to any of the motions. Thus, Plaintiff has waived any arguments and the court must grant motions. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman’s Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 [“it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion”].) <u>Sanctions</u>
--	--	---

		The Civil Procedure Code requires the court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) California Rules of Court rule 3.1348(a) further provides that "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a). Plaintiff has not shown that he acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The court must therefore award sanctions, although it will reduce the amount requested to take into account the fact that all three motions were nearly identical, there was no need to review any oppositions or prepare any replies, and that the court will hold only one hearing for all three motions. Defendant shall give notice of this ruling to both of Plaintiff's mailing addresses with a courtesy copy by electronic mail.
9	Martinez vs. County of Orange 30-2021-01208196	<u>Motion for Summary Judgment and/or Adjudication</u> Defendants County of Orange's, Deputy J. McAuliffe's, Deputy M. Sulham's, Deputy A. Copeland's, Deputy F. Deleo's, Deputy S. Orellana's, and Deputy M. Odom's Motion for Summary Judgment is DENIED. Defendants County of Orange's, Deputy J. McAuliffe's, Deputy M. Sulham's, Deputy A. Copeland's, Deputy F. Deleo's, Deputy S. Orellana's, and Deputy M. Odom's Motion for, in the Alternative Summary Adjudication is GRANTED as to the 7th Cause of Action and DENIED as to the remainder of the causes of action.